

**THE HONOURABLE SRI JUSTICE SUJOY PAUL
AND
THE HONOURABLE DR. JUSTICE G.RADHA RANI**

WRIT PETITION No.53 OF 2025

ORDER: *(per Hon'ble Sri Justice Sujoy Paul)*

Sri V.Veeresham, learned counsel for the petitioner and Sri T.Chaitanya Kiran, learned Assistant Government Pleader, representing learned Special Government Pleader for State Tax, for respondents.

2. With the consent, finally heard.
3. The petitioner assails the order, dated 22.08.2024, whereby, his registration is cancelled.
4. Learned counsel for the petitioner submits that the singular reason assigned for cancellation is cryptic and does not give any factual details about alleged breach on the part of the petitioner. Mere reproduction of statutory Rule is not sufficient for issuing a notice. In the absence of furnishing reasons, the show-cause notice and final order are not sustainable.
5. The other side supported the impugned order.
6. In the show-cause notice and final order, the following reasons are recorded.

“ Whereas no reply to the show cause notice has been submitted and whereas, the undersigned based on record available with the office is of the opinion that your registration is liable to be cancelled for following reason(s).

1. Rule 21 (e)-person avails ITC in violation of the provisions of section 16 of the Act or the rules made thereunder. “

7. A conjoint reading of show-cause notice and order for cancellation of registration shows that the respondents have solely relied upon Rule 21(e) of the GST Rules and have not given factual foundation, on the strength of which, said notice was issued. Thus, nature of breach is not spelled out. Thus, the notice and final order cannot sustain judicial scrutiny. In several similar matters, interference has been made, but, still the respondents are passing similar cryptic orders, which cannot sustain judicial scrutiny.

8. Resultantly, the show-cause notice and order dated 22.08.2024 are set aside. Liberty is reserved to the respondents to proceed against the petitioner, in accordance with law.

9. Accordingly, the Writ Petition is **disposed of**, without expressing any opinion on the merits of the case. No order as to costs.

Miscellaneous petitions pending, if any, shall stand closed.

JUSTICE SUJOY PAUL

DR. JUSTICE G.RADHA RANI

06.01.2025
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